IN THE SUPREME COURT OF THE STATE OF DELAWARE

IN THE MATTER OF THE PETITION OF TYRESE BURROUGHS FOR A WRIT OF PROHIBITION	)))	No. 130, 2022

STATE'S ANSWER AND MOTION TO DISMISS

Pursuant to Supreme Court Rule 43(b), the State of Delaware, as the real party in interest, submits the following in response to Tyrese Burroughs's ("Burroughs") Petition for a Writ of Prohibition:

1. On November 25, 2020, police arrested Burroughs and charged him with Possession of a Firearm During the Commission of a Felony, Possession of a Firearm By a Person Prohibited, Possession of Ammunition By a Person Prohibited, Carrying a Concealed Deadly Weapon, two counts of Possession of a Controlled Substance with intent to Deliver, and Possession of Marijuana, after discovering Burroughs was carrying a loaded semi-automatic handgun, and possessed 58 bags of heroin, one bag of crack cocaine and 3 grams of marijuana.[1] Burroughs' original bail was set at $110,501 cash.[2] After a preliminary hearing in

[1]Exhibit A – *State v. Burroughs*, Criminal Complaint Affidavit at 2-3.

[2]Exhibit B – *State v. Burroughs*, Super. Ct. ID No. 2011011781 at Docket Item ("D.I.") 1. At his initial appearance in the Court of Common Pleas, the court reduced Burroughs' bail to $20,000 cash and $14,501 secured. *State v. Burroughs*, 2022 WL 1115769, at n.12 (Del. Apr. 13, 2022).

December 2020, the court reset the bail to the original amount - $110,501 cash[3] and transferred Burroughs' case to the Superior Court; Burroughs thereafter filed a Motion for Non-Financial Conditions.[4]

2. At a Superior Court bail hearing in January of 2021, Burroughs' argued that his age, educational background, performance on probation, self-employment, and his prior attendance at court proceedings warranted removal of the financial conditions of his bail.[5] At a July 2021 Superior Court bail hearing, Burroughs argued that Delaware's bail system violated his right to (1) equal protection; (2) substantive due process; (3) procedural due process; and (4) sufficient sureties.[6] A Superior Court commissioner denied the motion and Burroughs sought review of the commissioner's decision.[7] After a review of the record, a Superior Court judge again denied Burroughs' Motion for Non-Financial Conditions.[8] Burroughs now seeks a Writ of Prohibition from this Court and asks that his bail "be modified to an amount without financial conditions."[9] Burroughs misapprehends the purpose of

[3]D.I. 4; *Burroughs*, 2022 WL 1115769, at n.1.

[4]D.I. 6.

[5]*Burroughs*, 2022 WL 1115769, at *2.

[6]D.I. 61; Exhibit A to Opening Brief.

[7]D.I. 57, D.I. 60; Exhibit A to Opening Brief; Exhibit B to Opening Brief.

[8]D.I. 69.

[9]Pet'n at 8.

the extraordinary writ he seeks and has failed to demonstrate that he is entitled to a Writ of Prohibition.

3. "A writ of prohibition is the legal equivalent of the equitable remedy of an injunction. Its purpose is to keep a trial court within the limits of its own jurisdiction."[10] "The jurisdictional defect must be manifest upon the record. The burden is on the petitioner to demonstrate to this Court, by clear and convincing evidence, that the trial court is without jurisdiction in the matter or is attempting to exceed its jurisdiction."[11] This Court's analysis in considering a petition for a writ of prohibition is twofold: (1) is there an adequate remedy available, other than a writ of prohibition; and (2) did the court lack or exceed it jurisdiction.[12] If there is an adequate remedy available, the Court need not address the jurisdictional question.[13]

4. Relying on *Steigler v. Superior Court*,[14] Burroughs contends there is no available remedy at law because the Superior Court's decision to deny bail is an

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[10] *In re Simmons*, 2020 WL 3957207, at *1 (Del. July 10, 2020) (citing *In re Hovey*, 545 A.2d 626, 628 (Del. 1988)).

[11] *In re Foraker*, 2007 WL 3194861, at *1 (Del. Oct. 31, 2007) (citing *Hovey*, 545 A.2d at 628).

[12] *Givens v. Delaware Harness Racing Comm'n*, 2012 WL 5949740, at *3 (Del. Nov. 28, 2012).

[13] *Id.*

[14] *Steigler v. Superior Court In and For New Castle County*, 252 A.2d 300 (Del. 1969).

unappealable decision. But Burroughs' case is distinguishable from *Steigler*. In *Steigler*, the Superior Court denied the defendant bail without a hearing.[15] In this case, the Superior Court did not deny Burroughs bail. The court set his bail in accordance with Delaware's bail laws,[16] after a hearing. Burroughs sought a modification of his bail to a non-financial amount, and the court denied his motion, after a hearing. "A petition for an extraordinary writ may not be used as a substitute for a timely-filed appeal."[17] Indeed, this Court will consider a lower court's bail decision on direct appeal from a conviction.[18] Burroughs seeks to have this Court set his bail in a non-financial amount using a writ of prohibition as the vehicle to achieve that end. However, "[t]here is no statutory or constitutional authority vested in this Court to grant bail prior to conviction. Generally, the courts of original criminal jurisdiction are given such bail powers."[19] Under Burroughs' theory, this Court would routinely review a lower court's bail determination through an extraordinary writ when a defendant is not satisfied with the lower court's bail determination. The defendant need only allege that the court, in making

[15] *In re Steigler*, 250 A.2d 379, 381 (Del. 1969).

[16] The statutes contained in Chapter 21 of Title 11 address bail and pretrial release.

[17] *In re Young*, 2011 WL 10296, at *1 (Del. Jan. 3, 2011).

[18] *See, e.g.*, *Boo'ze v. State*, 2004 WL 691903, at *5 (Del. Mar. 25, 2004) (trial judge's bail determinations are reviewed for an abuse of discretion.

[19] *Steigler*, 252 A.2d at 302.

its determination, failed to apply the correct standard of review, misapplied the correct standard of review, or failed to correctly assess the facts in support of its determination. Such a result is inapposite to the purpose of an extraordinary writ – this is especially true in light of the availability of a legal remedy provided by this Court. Burroughs has failed to establish that there is no adequate legal remedy to address the Superior Court's denial of his motion to modify bail. The Court can dismiss Burroughs' petition on that basis alone.[20]

5. Burroughs has likewise failed to demonstrate that the Superior Court was without jurisdiction or exceeded its jurisdiction when it denied his bail modification motion. Burroughs' petition offers no credible basis upon which to question the Superior Court's jurisdiction.[21] He alleges that the court lacked jurisdiction because it violated his fundamental constitutional rights to (1) equal protection; (2) substantive due process; and (3) procedural due process. Burroughs also alleges the Superior Court's denial of his bail motion violated the "Sufficient Sureties" clause of Article I Section 12 of the Delaware Constitution. The Superior Court considered and rejected the same arguments Burroughs makes here.

6. Equal Protection

[20] *Givens*, 2012 WL 5949740, at *3.

[21] See 11 Del. C. § 2701(c) ("The Superior Court shall have jurisdiction, original and concurrent, over all crimes, except where jurisdiction is exclusively vested in another court").

Burroughs claims the court's order violated his right to equal protection. Thus, the court should have reviewed his claim under the strict scrutiny standard, rather than the rational basis review it applied. Burroughs is wrong. Strict scrutiny applies to claims involving constitutionally protected classes.[22] As the Superior Court correctly noted and Burroughs acknowledged, "poverty is not a suspect classification."[23] Applying rational basis review to the Delaware bail statute and the commissioner's order, the Superior Court correctly concluded:

> Delaware's bail statute, as applied to Defendant, is rationally related to ensuring public safety, which is not only a valid state purpose, but a compelling one. Removing an ease of release by imposing a high monetary bail rationally relates to protecting the public from violent offenders.[24]

"The government's interest in preventing crime by arrestees is both legitimate and compelling."[25] The Delaware bail statute authorizing monetary bail is rationally related to the government's interest in protecting the public. This claim fails.

7. Substantive Due Process

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[22] *City of Cleburne, Tex. v. Cleburne Living Center*, 473 U.S. 432, 440 (1985) (citing *McLaughlin v. Florida*, 379 U.S. 184, 192, (1964); *Graham v. Richardson*, 403 U.S. 365 (1971)).

[23] *State v. Burroughs*, 2022 WL 1115769, at *5 (Del. Apr. 13, 2022). *See Harris v. McRae*, 448 U.S. 297, 323 (1980); *James v. Valtierra*, 402 U.S. 137 (1971); *Maher v. Roe*, 432 U.S. 464, 471 (1977).

[24] *Burroughs*, 2022 WL 1115769, at *6.

[25] *United States v. Salerno*, 481 U.S. 739, 749 (1987) (citing *De Veau v. Braisted*, 363 U.S. 144, 155 (1960).

In his petition Burroughs claims the Superior Court's order violated his substantive due process rights "by failing to require or find clear and convincing evidence that [his] money bail-based incarceration is necessary and the least restrictive means of achieving the government's purpose."[26] Burroughs misapprehends the Superior Court's order. The Superior Court applied a strict scrutiny analysis, identified the clear and convincing standard, and applied it. When the court rejected Burroughs' substantive due process claim, it determined:

> Applying monetary bail above the amount a defendant can afford requires they remain in detention. A Court may consider a defendant's financial circumstances, but still set bail outside those means upon clear and convincing evidence that no less restrictive alternative will satisfy the government's purpose. For purposes of this case alone, I will assume the attachment of an unaffordable bail that results in detention implicates a defendant's fundamental right of liberty, triggering a strict scrutiny standard of review of Delaware's bail statute.
> * * * *
> Although general interest in preventing crime is compelling, such an interest is heightened when the State presents evidence the arrestee, already held to answer "for a serious crime, presents a demonstratable danger to the community." This is such a case.
> * * * *
> Here, the State presented clear and convincing evidence, as required by Delaware's bail statute, that no less restrictive alternative other than the cash bail assigned to Defendant would satisfy the government's compelling interest in protecting the public.
> * * * *

[26]Pet'n at 4.

> The State presented evidence that Defendant ignored his "Person Prohibited" classification and possessed a firearm while in the community. Defendant's charges are his third set of drug dealing charges, his most recent conviction was in 2019, and those previous charges included some classified as violent felonies. His current charges include a signal offense. As the State pointed out, and as the Commissioner emphasized, the State's testimony at the preliminary hearing provided strong probable cause evidence. Most significantly, when Defendant committed the alleged offenses, the State demonstrated he already was classified as a "Person Prohibited" from possession of a firearm, but that he nonetheless carried a firearm while in public in direct violation of the law. This is a case in which setting a significant monetary bail, in accord with SENTAC guidelines, satisfies a compelling government interest of public safety and is narrowly tailored to achieve that interest. Defendant demonstrated a disregard of Delaware law and this Court's instructions by carrying a firearm. As the Supreme Court has held, "[w]hen the Government proves by clear and convincing evidence that an arrestee presents an identified and articulable threat to an individual or the community, we believe that, consistent with the Due Process Clause, a court may disable the arrestee from executing that threat." No other means exist that would be less restrictive to ensure Defendant does not possess another firearm while in public other than setting a high monetary bail.[27]

The Superior Court applied strict scrutiny review to Burroughs' substantive due process claim and correctly evaluated the evidence under the clear and convincing standard before it determined that no other means exist that would be less strictive and still achieve a compelling government interest. Indeed, the court held a hearing

[27] *Burroughs*, 2022 WL 1115769, at *6-7 (emphasis added) (citations omitted).

and considered this very issue when Burroughs presented his expert on the subject.[28] Burroughs ignores the fact that the court considered all of the evidence before it and decided the issue based on its assessment of the record evidence. Unsurprisingly, he simply disagrees with the court's conclusion and attempts to challenge it by claiming the court either failed to apply or misapplied the correct standard. As is evident from the plain language of the order, the Superior Court applied the clear and convincing evidence standard to Burroughs' claim and cited support for its determination that monetary bail was the least restrictive means by which to ensure public safety in Burroughs' case. This claim likewise fails.

8. Procedural Due Process

Burroughs also claims that the Superior Court violated his procedural due process rights by failing to apply the clear and convincing standard to his claim. He acknowledges that the order "purports to apply a clear and convincing standard," but nonetheless contends, "it did not actually do so."[29] As noted above, the court identified the clear and convincing standard and applied it, citing to record evidence in support of its conclusion.[30] Burroughs is simply wrong and his claim fails.

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[28] *Burroughs*, 2022 WL 1115769, at *8.

[29] Pet'n at 6.

[30] *Burroughs*, 2022 WL 1115769, at *6-7.

9. Burroughs additionally claims that the Superior Court's order violates the Sufficient Sureties clause. With no legal support, he contends, "when money bail is used, it must be set to an amount calculated to promote pretrial success through financial incentivization," although he concedes that the Sufficient Sureties clause can be satisfied even when the amount of bail "happens to be an unaffordable amount."[31] The Superior Court considered this claim and concluded:

> In Delaware, monetary bail should be set at an amount that considers risk of flight and ensures public safety. If the State admitted its only interest for setting bail was in preventing Defendant's flight, the bail would need to be set at a sum designed to ensure that goal, and no more. But here, the Court properly was concerned with the public's safety if Defendant were to be released. To reiterate, Defendant, was classified as a "Person Prohibited" from possessing a firearm, and the State nevertheless presented evidence he carried one on his person when arrested. The bail imposed fell within the SENTAC guidelines and met the requirements of Delaware's constitutional bail statute.[32]

Article I section 12 of the Delaware Constitution states:

> All prisoners shall be bailable by sufficient sureties, unless for capital offenses when the proof is positive or the presumption great; and when persons are confined on accusation for such offenses their friends and counsel may at proper seasons have access to them.[33]

The preceding constitutional provision is implemented by trial courts through Delaware's bail statutes found in Chapter 21 of Title 11. Here, Burroughs broadly

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[31] Pet'n at 6-7.

[32] *Burroughs*, 2022 WL 1115769, at *8 (citation omitted).

[33] Delaware Constitution, Art. I, § 12.

contends that the Superior Court violated Article I, section 12 of the Delaware constitution when it denied his bail motion because "the record provides no support for the proposition that the amount of Defendant's bail is necessary to incentivize success." The purpose of Delaware's bail law can be found in section 2101, which states, in part:

> The various courts of this State are empowered and encouraged to make individualized decisions about terms and conditions of pretrial release. Each court shall utilize a system of pretrial release imposing reasonable nonmonetary conditions of release when those conditions adequately provide a reasonable assurance of the appearance of the defendant at court proceedings, the protection of the community, victims, witnesses and any other person, and to maintain the integrity of the judicial process.[34]

The statute makes no reference to setting bail at an amount aimed at "incentivizing success." Rather, sections 2101, 2104, 2105, and 2107 clearly set the framework for the imposition of monetary and nonmonetary conditions. In Burroughs' case the court considered his request for nonmonetary conditions and, contrary to Burroughs' assertion, assessed it against some of the statutory criteria listed in the Chapter 21 statutes. The court ultimately determined that nonmonetary conditions were not appropriate when weighed against several of the criteria meant to assure the safety of the public. The Superior Court did not violate Article I, section 12 of the Delaware Constitution. The court properly considered Burroughs' bail motion,

[34] 11 Del. C. § 2101.

held a hearing, and, citing to record evidence, declined to grant him nonmonetary bail - applying the criteria set forth in Chapter 21.

10. In sum, Burroughs seeks a remedy that is unavailable through a writ of prohibition. He has failed to demonstrate that there is not another adequate remedy, or that the Superior Court lacked jurisdiction when it denied his bail motion. Additionally, this Court is not vested with the authority to grant the relief he seeks, a modification of his bail. Consequently, Burroughs' petition for an extraordinary writ fails.

WHEREFORE, this Court should dismiss Burroughs' petition for a writ of prohibition.

Dated: May 3, 2022

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CERTIFICATE OF COMPLIANCE WITH TYPEFACE REQUIREMENT

AND TYPE-VOLUME LIMITATION

This motion complies with the typeface requirement of Supreme Court Rule 13(a)(i) because it has been prepared in Times New Roman 14-point typeface. It contains 2,734 words, counted from the first line of the text through the conclusion, excluding the caption, the signature block and the eFile footer.

/s/ Andrew J. Vella